

With the AI Act, regulations chase technology: will it be the same for America?
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Regulation has always chased progress and technological innovation, so it is no surprise that this is also happening regarding artificial intelligence. In this case, however, the technological development and the impact of artificial intelligence on society have a greater advantage than ever over regulation. Just look at the situation of the draft European regulation on artificial intelligence (the AI Act, which is expected to come into force next summer and of which Milano Finanza discussed on Saturday) and especially at President Biden's executive order to protect the privacy of U.S. citizens: governments are taking measures in response to this new digital revolution, but at what speed? The European regulation, the AI Act, will have a long path with possible modifications by the end of the year. But then, once definitively approved, it will be inevitable to give member countries a deadline, hardly less than a year and, indeed, perhaps longer, to prepare to directly apply its rules. In short, it is unlikely that the new rules will truly become law before 2025.

And naturally, the development of artificial intelligence and its spread in global markets will not stop waiting for this date, leading to two significant consequences. The first is that, inevitably, the new rules, when they come into force, will not be able to govern applications of artificial intelligence that have not yet emerged today or that simply do not yet appear deserving of specific regulatory intervention. After all, this is exactly what happened with generative artificial intelligences—those like ChatGPT, to be clear—which were not originally considered in the initial proposal of the AI Act and which, therefore, were attempted to be addressed on the fly when the text was already in the final stretch. It is nobody's fault, but it is simply a consequence of the overwhelming temporal misalignment between the rhythms of regulatory production—even when pressing the accelerator as much as possible, as has undeniably been done in the case of the preparatory work of the AI Act and that of technological development. Yet the problem exists.

The second consequence is the need to find a way to govern artificial intelligence in the coming months, in the next year, or perhaps longer. Because, otherwise, the risk is that technology itself becomes regulation and ends up shaping our lives, both personally and professionally, individually and collectively, in the public context and in the private one, even more stringently than the rules that generally emerge from our Parliaments and governments. After all, this has already largely happened with the Internet. Most of our daily behaviors in the digital dimension are techno-governed: we engage in them or we do not engage in them because the technologies we use allow or prevent us from doing so more than because the laws do. And this is a huge problem. The rules imposed through technology, in fact, originate in the technological laboratories and/or law firms of a handful of commercial companies and are, therefore, adopted—legitimately until proven otherwise—in the name of private interests, while the rules that emerge from our Parliaments and governments are adopted—or at least should be adopted—in the name of the public interest.

And the distance that exists between technocracy and democracy cannot be allowed to let the latter be overwhelmed by the former. But the risk is very current. To avert it, the European Union, aware that in the case of the impact of artificial intelligence on society, one cannot wait until 2025 to try to orient its development and use in a sustainable direction, is proposing to the technology giants of artificial intelligence to voluntarily commit to respecting the rules that will be contained in the AI Act once approved, before the deadline for its direct applicability in the various member countries expires. In short, a sort of voluntary pre-application of guidelines that will tomorrow be mandatory.

The exercise is called the AI Pact. The idea is good and shows awareness of the problem on the part of the EU institutions. Whether it will also be effective is, however, yet to be seen. We will first see if and how many of the global players in the race for artificial intelligence will adhere to it. But even those who do adhere will need time to get in line. Not to mention that oversight, in an entirely voluntary exercise, will be weak if not nonexistent: on the other hand, most of the countries in the Union have not yet identified the Authority that will be called to oversee the AI Act, which, consequently, will not be able to monitor compliance with the AI Pact. And then?

The important thing is not to place oneself in a messianic wait for the new rules and not to bet everything on their voluntary application by the market players because we do not start from scratch and we might discover that the existing rules, even if not designed for AI, can allow us to act effectively. For the future, aside from AI, we need to rethink how we govern technological innovation: we need fewer high-level rules, approved in tighter timelines, aimed at delegating detailed regulation downstream, perhaps to independent administrative authorities capable of moving from thought to action in a few months because, otherwise, the risk of finding our democracies overwhelmed by technocracy will become unsustainable.